

Below is a tabular summary of the property, acreage, existing and proposed rezone designation. Only one property is subject to this request and the application seeks the re-designation of this one property in its entirety.

Property Address	Acreage	Existing Zoning Designation	Proposed Zoning Designation
6075 Sunset Drive	± 1.74 Acres	TODD (MU-5)	TODD (MU-6)

The Applicant respectfully submits this application to rezone the Property from TODD (MU-5) to TODD (MU-6) to allow for the future development of a 12 story mixed use commercial/residential project. The Property is currently vacant and has been cleared. The uses permitted in TODD (MU-6) are similar to those permitted in TODD (MU-5), however, the reason for the rezoning request to TODD (MU-6) is to permit a 12 story commercial/residential mixed use development. TODD (MU-5), as the Property is currently zoned, only permits a maximum height of 8 stories (utilizing bonuses), including other limiting factors.

As provided in the enclosed set of plans filed with the Application, the Applicant is proposing a grocery store on the ground floor, several internal parking levels, and the remaining portion of the proposed project to consist of residential units. Rezoning the Property to TODD (MU-6) would permit the Property to accommodate not only more residents during a time that supply is desperately needed all throughout the City and County, but also by providing more workforce and affordable housing opportunities to those struggling to find homes in this low supply/high priced housing market. As supported by the Applicant's companion request, the Property is ideally situated for the proposed mixed use commercial/residential project.

Furthermore, this request is consistent with land use patterns within the City's Comprehensive Plan and FLUM. Specifically, the following Goals and Policies of the City's Comprehensive Plan will be furthered by this rezoning:

FLU Goal 3 Transit-Oriented Development District (TODD): Provide for increased intensity of mixed-use projects and flexible building heights in designated Transit-Oriented Development Districts (TODD), to the extent that development and redevelopment in these districts does not adversely impact surrounding primarily residential neighborhoods and uses.

FLU Objective 3.1: Support higher densities and intensities in the TODD areas to take advantage of the proximity of the Metrorail and create an area where residents can live and work in a pedestrian-oriented environment.

Policy 3.1.2. The City shall maintain and, as appropriate, expand the Transit-Oriented Development Districts delineated on the Future Land Use Plan Map. Development and

redevelopment in these districts shall occur in accordance with adopted development and redevelopment plans and the land development regulations, and shall not adversely impact surrounding neighborhoods and uses.

FLU Goal 6: To support the economic viability of the City through an adequate tax base and development that allows for the efficient provision of City services.

FLU Objective 6.1: Continue to increase the City's tax base and fiscal health through new development and redevelopment, increased property values, annexations, impact fees, grants, and other strategies as appropriate.

Policy 6.1.1 Zone for new development and redevelopment in accordance with the Future Land Use Map, including multi-story and mixed-use districts.

Housing Goal 1: To assure the availability of desirable, sound, and affordable housing for all current and future residents of the City of South Miami with special focus on infill and redevelopment and to include additional housing units in the Hometown District. It is recognized that the choice of residence location and housing type rests with the individual and that the City's role is to implement policies that expand locational and cost choices.

Housing Objective 1.1: The City shall support public and private efforts to provide at least 100 additional housing units, and aspire for the creation of more units, by 2023. Additionally, the City shall seek to provide an adequate supply of housing units that are affordable to households of all incomes, including the middle income sector, in proportions that are reflective of the City's housing demands and needs in residential projects and communities.

The rezoning request will allow the development of a modern, energy efficient and non-car centric, mixed use commercial/residential project that will support the City's tax base and will not adversely impact the surrounding residential neighborhood. The Property is located along SW 72 Street ("Sunset Drive"), a major artery through the City and approximately one block west of South Dixie Highway. The Property is within a quarter mile of several other properties primarily consisting of TODD zoned properties, several zoned TODD (MU-5) and TODD (MU-6). The increased height available under the TODD (MU-6) zoning designation will optimize the unique location benefits of the Property. It will allow future residents to use multimodal transportation, ride sharing services, or be within walking distance of the nearby retail shops, offices, South Miami Hospital facilities, and South Miami Metrorail station, which is located approximately one block to the east of the Property. It should also be highlighted that the Property abuts a bus stop pick up/drop off area along SW 72 Street.

Although neither the City's Comprehensive Plan nor the City's Land Development Code designate a specific distance requirement for TODD categories, other government entities such as Miami-Dade County designate a half a mile radius as an appropriate distance for the location of TODD categories in relation to Metrorail stations. For example, Section 33-193.6 of the Miami-Dade County Zoning Code states that a "transit corridor area is the area which lies within a one-

half mile radius of (i) the Metrorail stations, (ii) the corridors identified in the Strategic Miami Area Rapid Transit (SMART) Plan, or (iii) corridors designated by the Board of County Commissioners...” (emphasis added). As stated, the Property is located less than half a mile from the South Miami Metrorail station and would thus meet the distance requirement of other transit-oriented zoning categories in Miami-Dade County. Therefore, the proposed re-designation to TODD will continue the development trend along South Dixie Highway and SW 72 Street while providing adequate access to existing services and amenities in the adjacent area to accommodate the needs of potential residents. The close proximity could serve as a housing opportunity for professionals working in the surrounding area, including those working at South Miami Hospital just down the street.

Additionally, under the proposed re-designation to TODD (MU-6), the Property could be developed with a minimum of 50 dwelling units per acre and a maximum building height of eight (8) stories, by right, or up to twelve (12) stories through the use of bonuses. Specifically, the Applicant is proposing 315 dwelling units and 29,403 square feet for a grocery store with a height total of twelve (12) stories. The Applicant is requesting an additional four (4) stories of residential units, in exchange for providing an additional five percent (5%) Affordable Housing and five percent (5%) Workforce Housing units. The proposed mixed use commercial/residential project will also provide much-needed housing for current and future residents of the City, including affordable housing units as required in Section 20-8.4(D) of the Land Development Code.

Based on the foregoing, we respectfully request your favorable review and recommendation of approval of this request. Thank you in advance for your considerate attention to this matter. Please let me know if you have any questions or require additional information.

Sincerely,

HOLLAND & KNIGHT LLP

A handwritten signature in dark ink, appearing to read "Ines Marrero-Priegues", written in a cursive style.

Ines Marrero-Priegues

Exhibit “A”

Property Legal Description